Company Policies

NovaCart Commerce

Consumer Governance & Acceptable Behavior

1. **Account Creation, Management & Termination**
   - **Access & Eligibility:** Users must be of legal age (or supervised) and provide accurate KYC/payment details. Platforms reserve the right to refuse service or cancel orders at their sole discretion.
   - **Algorithmic Claim Processing & AI Consent:** The platform employs automated decision-making systems and machine learning algorithms to assess transaction risk, validate eligibility, and process claims. The platform reserves the right to route any transaction for manual review based on algorithmic risk scoring.
   - **Account Suspension:** Termination is triggered by unethical behavior, fraud, policy violations, or suspicious transaction volumes.
   - **System Impact:** Velocity limits (capping per-user quantities) and transaction monitoring are actively enforced to ensure equitable access and prevent abuse.

Consumer Governance (Terms of Use)

2. Anti-Abuse Policies & Platform Integrity

- **Scraping & Data Mining:** Strict prohibitions against using robots, spiders, data mining, or framing techniques to extract platform data or bypass navigational structures.
- **AI & Bot Regulation:** Autonomous "Agents" must explicitly identify themselves in HTTP requests, cannot mimic human interactions, and cannot bypass CAPTCHAs. AI-generated content from the platform cannot be used to train LLMs.
- **Content Restrictions:** Zero tolerance for Synthetically Generated Information (SGI/deepfakes) that is deceptive or unlabeled, as well as defamatory user-uploaded content.
- **Operational Abuse:** Users are prohibited from imposing excessive loads on platform infrastructure or discriminating against third-party delivery person

Platform Liability & Intellectual Property

1. Limitation of Liability & Warranties

- **"As Is" Service:** Platforms and software are provided without express or implied warranties regarding uptime, accuracy, or uninterrupted access.
- **Third-Party Disclaimers:** The platform acts as a marketplace facilitator and assumes no liability for seller product quality, third-party delivery negligence, or advice from third-party services.
- **Dispute Resolution:** Governance structures heavily favor the platform, often mandating binding arbitration and class-action waivers rather than traditional court proceedings.

Platform Liability & Intellectual Property

2. Intellectual Property Rights

- **Platform IP:** All proprietary text, graphics, UI, and algorithms remain the exclusive property of the platform. The license granted to the consumer is strictly limited, personal, non-transferable, and non-commercial.
- **User-Generated Content:** Users grant platforms broad, royalty-free, perpetual rights to use, modify, and display any submitted reviews or content.
- **Infringement & Takedowns:** Platforms maintain strict Notice and Takedown policies to quickly remove counterfeit goods or copyright-infringing materials uploaded by third-party sellers without assuming direct liability for the infringement.

Vendor & Merchant Agreement (Marketplace Rules)

1. Commercial Terms & Commission Structures

- **Tiered Referral Fees:** Platforms charge category-specific commissions
- **Fulfillment & Storage Costs:** Additional fees are levied for utilizing platform logistics (e.g., FBA or Flipkart Smart Fulfillment), including long-term storage penalties for slow-moving inventory.

2. Operational SLAs & Packaging Standards

- **Strict Fulfillment Metrics:** Sellers must maintain strict performance targets, such as a Late Shipment Rate (LSR) below 4% and a Pre-fulfillment Cancel Rate below 2.5% (Amazon standards).
- **Mandatory Packaging Rules:** Items must adhere to prep requirements (e.g., poly-bagging for liquids, barcode visibility) and initiatives like "Frustration-Free Packaging" to reduce waste and optimize warehouse storage.

Vendor & Merchant Agreement (Marketplace Rules)

3. Intellectual Property Guarantees

- **Anti-Counterfeiting:** Sellers are strictly prohibited from listing inauthentic goods. Platforms require proof of supply chain authenticity (invoices) upon request.
- **Brand Protection:** Programs like Brand Registry allow right owners to lock catalog details and algorithmically flag suspected intellectual property violations (SIPV).

4. System Impact (Architectural Requirements)

- **Vendor Onboarding Schemas:** Requires robust data schemas to capture KYC, GST/Tax IDs, banking details, and brand authorization letters before account activation.
- **Catalog Ingestion Workflows:** Product APIs must enforce mandatory attributes (GTIN/UPC, high-res images on white backgrounds, bullet points) before a listing goes live.
- **Automated Penalty Deductions:** The system continuously calculates SLA adherence; breaches automatically trigger listing suppression (Buy Box removal) or direct financial deductions from the seller's bi-weekly payment settlement.

Logistics & Fulfillment Policy (Operations SLA)

- **Inventory & Packaging Compliance:** All inbound shipments must adhere to strict labeling, barcoding, and packaging guidelines. Non-compliant shipments will face dock rejection or automated repackaging fees.
- **Regulated & Perishable Goods:** Restricted categories require pre-approval. Quick-commerce perishables mandate minimum inbound shelf-life guarantees; expiring inventory will be liquidated at the vendor's expense.
- **Platform Return Governance:** Sellers utilizing the platform's fulfillment network are bound by the automated AI refund engine's eligibility decisions.
- **Multi-Channel Fulfillment (MCF):** Sellers using the platform to fulfill off-channel orders retain sole responsibility for processing their own replacements, refunds, and direct customer service.
- **Feedback Arbitration:** Negative customer ratings resulting exclusively from platform-controlled picking, packing, or delivery delays will be struck through to protect seller performance metrics.

Logistics & Fulfillment Policy (Operations SLA)

- **Platform Reimbursement Liability:** Sellers are eligible for reimbursement (net of fees) for inventory lost or physically damaged while strictly under the platform's control (e.g., inside fulfillment centers, via partnered carriers, or during last-mile delivery).
- **Vendor Defect Liability:** The platform assumes zero financial liability for concealed manufacturing defects inside sealed packaging or damages incurred via non-partnered inbound carriers.
- **Return-to-Origin (RTO):** Platform-fulfilled RTO logistics costs are absorbed by the platform, whereas Seller-Fulfilled Network (SFN) RTO shipping costs are borne by the seller.
- **Last-Mile OTP & Verification:** High-value electronics and age-gated items require dynamic OTP or ID capture. Deliveries executed without this verified proof shift refund liability to the 3PL logistics partner.
- **Dark-Store Quick-Commerce SLAs:** Orders mandate strict minute-bound pick/pack cycles utilizing weight-sensor verification. Validated dispatch weight discrepancies shift missing-item liability directly to the dark-store operational budget.

Financial Charter(Payment Processing & Compliance)

- **Escrow & Nodal Account Mandates:** All customer payments are processed and held in a compliant nodal/escrow bank account prior to vendor disbursement, strictly adhering to financial regulations for marketplace operators.
- **Taxation & Statutory Deductions:** The platform automatically calculates, deducts, and remits applicable Tax Collected at Source (TCS) and integrated taxes (e.g., GST) from gross seller payouts prior to final settlement.
- **Payment Gateway SLAs:** Customer refund crediting timelines are explicitly bound by third-party payment gateway processing limits (e.g., instant for closed-loop wallets, hours for UPI/Real-Time Payments, and 5-7 business days for credit card networks).
- **Proration & Discount Logic:** Platform-funded discounts, promotional coupons, and cart-level fulfillment fees are mathematically prorated across individual line items. During partial refunds, only the net customer-paid amount for that specific SKU is returned.

Financial Charter (Settlement & Reconciliation)

- **Vendor Settlement Cycles:** Marketplace sellers receive payouts on a standard T+2 business day rolling cycle, calculated from the date of successful delivery confirmation, minus applicable platform commissions and logistical fees.
- **Chargeback & Risk Liability:** Bank-initiated chargebacks resulting from stolen financial instruments are absorbed by the platform's centralized risk ledger. Chargebacks resulting from proven defective merchandise or seller-fulfilled non-delivery are debited directly from the seller's account.
- **Automated Tri-Party Reconciliation:** Financial ledger closure mandates a strict three-way automated match between the internal platform order intent, the payment gateway settlement file, and the core banking statement.
- **Dispute Arbitration:** Vendor payout disputes or settlement mismatches must be registered within 30 days of the transaction execution. The platform’s internal deterministic ledger serves as the authoritative source of truth during arbitration.

Data Privacy & Consumer Rights

- **Regulatory Compliance:** The platform strictly adheres to applicable national data protection frameworks (e.g., DPDP Act, GDPR) governing the collection, processing, and localized storage of Personally Identifiable Information (PII).
- **Algorithmic Consent:** By transacting on the platform, consumers explicitly consent to automated data processing and machine learning evaluations for fraud detection, risk profiling, and automated refund eligibility scoring.
- **Data Masking & Least Privilege:** Internal operational dashboards, external vendor portals, and 3PL rider applications enforce strict PII masking (e.g., anonymized contact numbers, obfuscated geo-coordinates) to restrict access to a need-to-know basis.
- **Right to Erasure & Export:** Users retain the right to request data deletion or export. In the event of a deletion request, transactional data governed by external statutory laws is aggressively anonymized rather than fully purged.

System Security & Audit Compliance

- **PCI-DSS Adherence:** The platform strictly prohibits the storage of raw credit card numbers, CVVs, or net-banking credentials. All payment instructions rely on vaulted, network-agnostic tokenization and Virtual Payment Addresses (VPAs).
- **Cryptographic Standards:** All sensitive customer records, AI risk profiles, and user-uploaded evidence (e.g., unboxing videos, photos) are encrypted at rest using AES-256 and transmitted in transit exclusively via TLS 1.2+ protocols.
- **Immutable Audit Trails:** Every automated AI system decision, financial ledger transition, and manual L2 operational override is recorded in an append-only, tamper-evident datastore to ensure complete forensic traceability.
- **Statutory Data Retention:** Financial artifacts, automated payout decisions, and associated tax invoices are retained in immutable cold storage for a minimum of 7 years to satisfy regulatory taxation and corporate auditing mandates.